

## 20STCV42041 20STCV42041

County: los-angeles

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Case Number: 20STCV42041 Hearing Date: July 17, 2026 Dept: 514

Rosenthal v. Bella + Canvas, LLC

20STCV42041

Defendant's Motion to Compel Plaintiff to Provide Further Responses  
to Form Interrogatories (Set One)

Defendant's Motion to Compel Plaintiff to Provide  
Further Responses to Special Interrogatories (Set One)

Defendant's Motion to Compel Plaintiff to Provide  
Further Responses to Requests for Production (Set One)

Tentative Ruling

The motions are granted in part and denied in  
part.

Background

This action arises out of a business  
arrangement for the manufacture and sale of face masks during the COVID-19  
pandemic.

On November 13, 2020, Jeffrey Rosenthal ("Plaintiff")  
filed the initial complaint in this action.

After several years of litigation, judgments in favor of all defendants were  
entered in June and July 2023, in part on demurrer and in part on summary

judgment.

On January 14, 2025, the Court of Appeal issued an opinion reversing the judgments.

The remittitur issued on March 17, 2025.

Following the remand, the case was reassigned to this department.

On August 19, 2025, Plaintiff filed a Fourth Amended Complaint (the "FAC"), which is the operative complaint, naming as defendants Bella + Canvas, LLC ("Bella"); Daniel Harris ("Harris"); Abby Gordon ("Gordon"); Jeremy Schwartz ("Schwartz"); and Does 1 through 50. In the FAC, Plaintiff asserts causes of action for: (1) fraud; (2) breach of oral contract; (3) common counts; (4) violation of Business & Professions Code sections 17200, et seq.; (5) conspiracy to commit fraud; (6) intentional interference with contract; and (7) intentional interference with prospective economic relations.

On September 18, 2025, Defendants Bella and Harris filed an answer to the FAC.

Also on September 18, 2025, Defendants Gordon and Schwartz filed an answer to the FAC.

And on that same date, Schwartz also filed a Cross-Complaint against Plaintiff for declaratory relief. Plaintiff filed an answer to the Cross-Complaint on October 14, 2025.

Currently before the Court and set for hearing on July 17 are three discovery motions filed on June 1, 2026.

First, Defendant Schwartz (for purposes of this ruling, "Defendant") filed a motion to compel Plaintiff to provide further responses to Form Interrogatories (Set One) 2.6, 12.1, 15.1, 50.1, and 50.5.

Second, Defendant filed a motion to compel Plaintiff to provide further responses to Special Interrogatories (Set One), Nos. 2, 6-10, 12-13, 16-22, and 24-28.

Third, Defendant filed a motion to compel Plaintiff to provide further responses to Requests for Production (Set One), Nos. 18-25 and 30.

Plaintiff filed oppositions to each motion on July 6. Defendant filed replies on July 10.

No party requests sanctions.

Trial is set for April 19, 2027.

#### Legal Standard

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given  
“within 45 days of the service of the verified response, or any supplemental  
verified response, or on or before any specific later date to which the  
propounding party and the responding party have agreed in writing.” (Id.,  
subd. (c).)

A motion  
to compel further responses must set forth specific facts showing good cause  
for the discovery and must be accompanied by a meet-and-confer declaration and  
a separate statement or, in the discretion of the Court, a “concise outline of  
the discovery request and each response in dispute.” (Id., subd.  
(b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

Discussion

Form  
Interrogatories

2.6,  
12.1, 50.5

The objections  
are overruled. The responses are not sufficiently  
complete and straightforward, as required by Code. The motion is granted as to these interrogatories.

15.1,  
50.1

The objections  
are overruled. The responses are sufficiently  
complete and straightforward. The motion  
is denied as to these interrogatories.

Special  
Interrogatories

No. 2,  
10, 16-22, 24-25

The objections

are overruled. The responses are not sufficiently complete and straightforward. The responding party's reliance on Code of Civil Procedure section 2030.230 is not appropriate, and (independently) the responding party does not sufficiently specify the writings from which the answers may be derived or ascertained. The motion is granted as to these interrogatories.

Nos. 6-9,  
12-13, 28

The objections are overruled. The responses are sufficiently complete and straightforward. The motion is denied as to these interrogatories.

No. 26

The privacy objection is sustained. The motion is denied as to this interrogatory.

No. 27

The objections are overruled. The response is not sufficiently complete and straightforward. The motion is granted as to this interrogatory.

Requests  
for Production

Nos. 18-21

The objections are overruled. The responses narrow the scope of the requests and are therefore not code compliant. Good cause has been shown. The motion is granted as to these requests.

Nos. 22,  
25

The objections  
based on scope are sustained. Good cause  
has not been shown. The motion is denied  
as to these requests.

Nos. 23-24

The objections  
based on scope are sustained. Good cause  
has not been shown for production other than that agreed to by the responding  
party. The motion is denied as to these requests.

No. 30

The privacy objection  
is sustained. Good cause has not been  
shown. The motion is denied as to this request.

Conclusion

The Court GRANTS  
IN PART Defendant Jeremy Schwartz's motions to compel further responses to Form  
Interrogatories (Set One), Special Interrogatories (Set One), and Request for  
Production of Documents (Set One).

The Court ORDERS  
Plaintiff Jeffrey Rosenthal to provide further, code compliant, verified  
written responses to Form Interrogatories (Set One) 2.6, 12.1, and 50.5 by no later than August 7, 2026.

The Court ORDERS  
Plaintiff Jeffrey Rosenthal to provide further, code compliant, verified  
written responses to Special Interrogatories (Set One) Nos. 2, 10, 16-22, 24-25, and 27 by no later than  
August 7, 2026.

The Court ORDERS  
Plaintiff Jeffrey Rosenthal to provide further, code compliant, verified  
written responses to Requests for Production (Set One) Nos. 18-21 by no later than August 7, 2026.

The motions are in all other respects denied.

Moving Party is ORDERED to give notice.